

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                                            |                                                       |                                    |                                 |
|---------------------------------------------------|-------------------------------------|--------------------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Charlie Hartford                 | Team:<br>Squad #12                  | CCRB Case #:<br>201709116                  | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                     |                                            | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 10/26/2017 10:38 AM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>4/26/2019                    | Precinct:<br>67                                       |                                    |                                 |
| Date/Time CV Reported<br>Tue, 10/31/2017 5:25 PM  | CV Reported At:<br>CCRB             | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Tue, 10/31/2017 5:25 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
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| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)             | Shield | TaxID  | Command |
|--------------------------------|--------|--------|---------|
| 1. POF Samantha Mercadoakaydin | 19739  | 958927 | 067 PCT |
| 2. SGT Angel Badillo           | 02647  | 921941 | 067 PCT |
| 3. POM Joseph Rivera           | 27426  | 951150 | 067 PCT |
| 4. DI Elliot Colon             | 00000  | 905982 | 067 PCT |

| Witness Officer(s)         | Shield No | Tax No | Cmd Name |
|----------------------------|-----------|--------|----------|
| 1. POM Christian Villacis  | 05464     | 949772 | 067 PCT  |
| 2. POF Kristen Mastrangelo | 15675     | 961927 | 067 PCT  |
| 3. POM Daniel Hall         | 00731     | 950552 | 067 PCT  |
| 4. POM Francesco Pennisi   | 14488     | 951034 | 067 PCT  |
| 5. SGT David Zayas         | 02577     | 942740 | INT CIS  |
| 6. SGT Charles Schwartz    | 05458     | 947478 | 067 PCT  |
| 7. SGT Ryan Habermehl      | 01478     | 931713 | 076 PCT  |

| Officer(s)                      | Allegation                                                                     | Investigator Recommendation |
|---------------------------------|--------------------------------------------------------------------------------|-----------------------------|
| A . POF Samantha Mercadoakaydin | Abuse: Police Officer Samantha Mercadoakaydin entered § 87(2)(b) in Brooklyn.  | A . Exonerated              |
| B . POM Joseph Rivera           | Abuse: Police Officer Joseph Rivera entered § 87(2)(b) in Brooklyn.            | B . Exonerated              |
| C . POF Samantha Mercadoakaydin | Abuse: Police Officer Samantha Mercadoakaydin searched § 87(2)(b) in Brooklyn. | C . Exonerated              |
| D . POM Joseph Rivera           | Abuse: Police Officer Joseph Rivera searched § 87(2)(b) in Brooklyn.           | D . Exonerated              |
| E . SGT Angel Badillo           | Abuse: Sergeant Angel Badillo entered § 87(2)(b) in Brooklyn.                  | E . Exonerated              |
| F . DI Elliot Colon             | Abuse: Deputy Inspector Elliot Colon entered § 87(2)(b) in Brooklyn.           | F . Exonerated              |

| <b>Officer(s)</b>     | <b>Allegation</b>                                                     | <b>Investigator Recommendation</b> |
|-----------------------|-----------------------------------------------------------------------|------------------------------------|
| G . SGT Angel Badillo | Abuse: Sergeant Angel Badillo searched § 87(2)(b) in Brooklyn.        | G . Exonerated                     |
| H . DI Elliot Colon   | Abuse: Deputy Inspector Elliot Colon searched § 87(2)(b) in Brooklyn. | H . Exonerated                     |
| I . DI Elliot Colon   | Abuse: Deputy Inspector Elliot Colon arrested § 87(2)(b)              | I . Substantiated                  |
| J . DI Elliot Colon   | Abuse: Deputy Inspector Elliot Colon arrested § 87(2)(b)              | J . Substantiated                  |
| K . DI Elliot Colon   | Abuse: Deputy Inspector Elliot Colon arrested § 87(2)(b)              | K . Substantiated                  |
| L . DI Elliot Colon   | Abuse: Deputy Inspector Elliot Colon arrested § 87(2)(b)              | L . Substantiated                  |
| M . DI Elliot Colon   | Abuse: Deputy Inspector Elliot Colon searched § 87(2)(b) in Brooklyn. | M . Exonerated                     |
| N . DI Elliot Colon   | Abuse: Deputy Inspector Elliot Colon entered § 87(2)(b) in Brooklyn.  | N . Exonerated                     |

### Case Summary

On October 31, 2017, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

On October 31, 2017, at approximately 10:38 a.m., Police Officer Samantha Mercado-Akaydin and Police Officer Joseph Rivera of the 67<sup>th</sup> Precinct entered and searched § 87(2)(b) in Brooklyn in response to a report by EMS personnel stating that they had found two firearms under the mattress of an individual suffering an apparent cardiac arrest, § 87(2)(b) **(Allegations A-D: Abuse of Authority, exonerated)**. PO Mercado-Akaydin notified her patrol supervisor, Sergeant Angel Badillo, who in turn notified his commanding officer, Deputy Inspector Colon. Both supervisors responded to and entered the residence **(Allegations E and F: Abuse of Authority, exonerated)**. Officers allegedly searched § 87(2)(b)'s room under the supervision of Sgt. Badillo and, later, under the supervision of Deputy Inspector Colon **(Allegations G and H: Abuse of Authority, exonerated)**. Deputy Inspector Colon instructed officers to arrest § 87(2)(b) and § 87(2)(b) **(Allegations I-L: Abuse of Authority, substantiated)**.

On October 31, 2017, at approximately 6:30 p.m., officers under the supervision of Deputy Inspector Colon entered and searched § 87(2)(b) pursuant to Kings County Supreme Court Search Warrant # § 87(2)(b) **(Allegation M and Allegation N: Abuse of Authority, § 87(2)(g))**

This case is being concurrently investigated as a death in custody by Det. Jason Balsan of Force Investigations Division under case number § 87(2)(g) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

This case includes video evidence (Board Review 36). A summary of this footage may be reviewed at Board Review 37.

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Police Officer Samantha Mercado-Akaydin entered § 87(2)(b) in Brooklyn.**

**Allegation (B) Abuse of Authority: Police Officer Joseph Rivera entered § 87(2)(b) in Brooklyn.**

**Allegation (C) Abuse of Authority: Police Officer Samantha Mercado-Akaydin searched § 87(2)(b) in Brooklyn.**

**Allegation (D) Abuse of Authority: Police Officer Joseph Rivera searched § 87(2)(b) in Brooklyn.**

It is undisputed that at approximately 10:31 a.m. on October 26, 2019, § 87(2)(b) called 911 to report that her § 87(2)(b) son, § 87(2)(b) had collapsed in his room on the second floor of their private residence at § 87(2)(b) in Brooklyn.

Event documentation shows that at 10:41 a.m., New York City Fire Department personnel requested that police officers respond to § 87(2)(b) due to a dispute inside the residence (Board Review 08). At 10:59 a.m., PO Mercado-Akaydin and PO Rivera put over the radio that they had arrived on scene. Approximately 15 seconds later, EMS personnel again requested that officers respond to the location due to two possible firearms discovered under § 87(2)(b)'s mattress.

In her sworn statement, § 87(2)(b) stated that approximately 10:00 a.m. on October 26, 2017, she received a call from her mother, § 87(2)(b) stating that her brother § 87(2)(b) had collapsed and was not breathing (Board Review 01). § 87(2)(b) drove with her boyfriend, § 87(2)(b) from her residence at § 87(2)(b) in Brooklyn to the location. Upon their arrival, numerous EMS and FDNY personnel were on scene, in addition to § 87(2)(b) and § 87(2)(b). Approximately five minutes later, PO Mercado-Akaydin and PO Rivera entered the residence and immediately walked upstairs towards § 87(2)(b)'s room. § 87(2)(g)

§ 87(2)(g) (Board Review 03). § 87(2)(b) stated that after PO Mercado-Akaydin and PO Rivera entered the residence, he followed them upstairs to see what was happening. § 87(2)(b) observed numerous EMS and FDNY personnel inside § 87(2)(b)'s room, as well as PO Mercado-Akaydin and PO Rivera, who were kneeling down on the floor at this time.

§ 87(2)(b)'s statement was generally consistent with those of § 87(2)(b) and § 87(2)(b) (Board Review 04). § 87(2)(b)'s twin brother, § 87(2)(b) and § 87(2)(b)'s son, § 87(2)(b) were not present for this portion of the incident (Board Reviews 05 and 06).

§ 87(2)(b) the FDNY supervisor on scene, had no recollection of this incident on the date he provided a statement to the CCRB (Board Review 29).

PO Mercado-Akaydin's § 87(2)(g) (Board Review 07). After initially receiving a radio run concerning a person in need of medical attention at § 87(2)(b), PO Mercado-Akaydin and PO Rivera received an additional call from EMS specifically requesting that officers respond, which PO Mercado-Akaydin found atypical. PO Mercado-Akaydin did not recall firearms being mentioned during this call. Upon responding to the residence, PO Mercado-Akaydin was informed by an EMT either at the front steps or just inside the front door that, as EMTs were moving § 87(2)(b) onto a stretcher, § 87(2)(b)'s mattress had moved to reveal two firearms resting on the box spring. The officers entered and walked upstairs to § 87(2)(b)'s room, at which time PO Mercado-Akaydin observed that either "one third" or "five to six inches" of the bedspring was exposed due to the mattress being slid against the wall. Two firearms were completely visible resting on the exposed portion. PO Mercado-Akaydin denied that any searches were conducted of the residence at this point, stating, "Just whatever was in the room, we saw with our eyes, we never touched anything else." PO Mercado-Akaydin was informed by EMS that they did not touch the firearms

after finding them, and PO Mercado-Akaydin stated that officers did not touch the firearms prior to the later execution of a search warrant.

§ 87(2)(g)

In People v. Mercado, 68 N.Y.2d 874, 875, 508 N.Y.S.2d 419, 421, 501 N.E.2d 27, 29 (1986), the New York Court of Appeals held that visually surveying an area where a person has a “cognizable expectation” of privacy, such as the home, constitutes a search (Board Review 09).

In People v. Mitchell, 39 NY2d 173 [1976], the Court of Appeals of New York stated that while warrantless entries and searches are presumptively unreasonable, an exception applies if officers “have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property,” have some “reasonable basis... to associate the emergency with the area or place to be searched,” and are not “primarily motivated by intent to arrest and seize evidence” (Board Review 10).

In Brigham City v. Stuart, 547 US 398 [2006], the Supreme Court of the United States stated that “This Court has repeatedly rejected respondents' contention that, in assessing the reasonableness of an entry, consideration should be given to the subjective motivations of individual officers” (Board Review 11). The New York Court of Appeals has not ruled upon whether to retain a subjective assessment of the officers' motivation as it pertains to the emergency exception to the warrant requirement (see People v. Doll, 98 AD3d 356 [4th Dept 2012] [Board Review 12]).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A-D** be closed as **exonerated**.

**Allegation (E) Abuse of Authority: Sergeant Angel Badillo entered § 87(2)(b) in Brooklyn.**

**Allegation (F) Abuse of Authority: Deputy Inspector Elliot Colon entered § 87(2)(b) in Brooklyn.**

It is undisputed that Sgt. Badillo and DI Colon entered § 87(2)(b) § 87(2)(b)

Sgt. Badillo, who was assigned the position of patrol supervisor for the 67<sup>th</sup> Precinct on the date of incident, stated in his CCRB interview that he and his partner, PO Kristen Mastrangelo, were the next officers to arrive on scene after PO Mercado-Akaydin and PO Rivera (Board Review 13). § 87(2)(g)

§ 87(2)(b) Sgt. Badillo stated that he entered the residence solely to respond to the AIDED case and to investigate the reported firearms (Board Review 13). After going upstairs, observing the firearms, and determining by conferring with the NYPD Licensing Division that § 87(2)(b) did not have a license or permit allowing him to possess firearms, Sgt. Badillo notified Deputy Inspector Colon, who in turn responded to the location.

Deputy Inspector Colon, who was acting as the commanding officer for the 67<sup>th</sup> Precinct on the date of incident, stated that he entered the location solely to investigate the reported firearms and to acquire an overview of what was going on (Board Review 14). Deputy Inspector Colon stated that § 87(2)(b) may have been en route to the hospital at the time he responded, but that he did not recall specifically. After he entered the residence and observed the reported firearms, DI Colon instructed Sgt. Badillo to arrest the civilians at the residence and to obtain a search warrant for the location. Deputy Inspector Colon did not recall at what time he responded to § 87(2)(b) § 87(2)(b)

No officer interviewed by the investigation recalled being made aware of a dispute inside the residence (Board Reviews 07, 13 and 14). The officers were consistent in describing the civilians' demeanors as being "concerned" for § 87(2)(b) and, in PO Mercado-Akaydin's account, later being confused about what was going on.

Event documentation shows Sgt. Badillo arrived at § 87(2)(b) § 87(2)(b) at 11:11 p.m., and that § 87(2)(b) was transported to § 87(2)(b) at 11:15 p.m. (Board Review 08). The time at which Deputy Inspector Colon responded is not noted in any police documentation (Board Reviews 08, 14, 15, 16 and 17).

Patrol Guide Section 202-17 states that the patrol supervisor must "immediately respond to and direct activities at radio runs involving any weapons (firearms, knives, etc.), serious crimes, burglaries and emergencies" (Board Review 25).

Patrol Guide Section 202-09 states that the commanding officer must "respond to major radio runs and unusual occurrences within command, when available, and perform prescribed functions" (Board Review 26).

§ 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be closed as **exonerated**.

**Allegation (G) Abuse of Authority: Sergeant Angel Badillo searched § 87(2)(b) in Brooklyn.**

**Allegation (H) Abuse of Authority: Deputy Inspector Elliot Colon searched § 87(2)(b) in Brooklyn.**

It is undisputed that officers visually observed two firearms in § 87(2)(b)'s room prior to later obtaining a search warrant.

In her sworn statement, § 87(2)(b) stated that approximately five minutes after PO Mercado-Akaydin and PO Rivera's entry, § 87(2)(b) was brought downstairs on a stretcher (Board Review 01). § 87(2)(b) observed that § 87(2)(b)'s hands appeared to be crossed on the stretcher, although her view was obscured by a white sheet. After § 87(2)(b) left to accompany § 87(2)(b) to the hospital, § 87(2)(b) and § 87(2)(b) waited in § 87(2)(b)'s room while approximately three officers searched § 87(2)(b)'s room and three officers stood outside in the hallway. § 87(2)(b) could only observe the officers in the hallway from her vantage point in the room. Eventually, an officer the § 87(2)(b) and § 87(2)(b) that they had found firearms in § 87(2)(b)'s room. § 87(2)(b) went downstairs to meet her uncle, § 87(2)(b) who had arrived on scene in response to an earlier call from § 87(2)(b). Upon allowing § 87(2)(b) access to the residence, an officer informed § 87(2)(b) that they were searching § 87(2)(b)'s room and needed her and her family to wait downstairs. § 87(2)(b)'s phone statement was consistent with her verified statement (Board Review 02).

§ 87(2)(b) made no mention of him or § 87(2)(b) being in § 87(2)(b)'s room in his sworn statement (Board Review 03). § 87(2)(b) observed that § 87(2)(b)'s hands were crossed underneath a white sheet when he was brought downstairs in the stretcher, which he later surmised was due to § 87(2)(b) being handcuffed.

§ 87(2)(g)

§ 87(2)(b) stated that upon initially leaving the scene, she was not permitted to accompany § 87(2)(b) to the hospital and was required to take a separate FDNY vehicle. Upon her arrival at the hospital, § 87(2)(b) was already in a room receiving treatment, and § 87(2)(b) was not permitted to speak to the doctor caring for § 87(2)(b). While § 87(2)(b) waited to talk to a doctor about § 87(2)(b)'s condition, § 87(2)(b) received a call from § 87(2)(b) stating that officers were searching § 87(2)(b)'s room. § 87(2)(b) returned to the residence, whereupon she received a call from § 87(2)(b) who was at the hospital. § 87(2)(b) informed § 87(2)(b) that he was not being allowed to see § 87(2)(b) because § 87(2)(b) was under arrest.

§ 87(2)(g)

§ 87(2)(b) stated that upon responding to § 87(2)(b) he and § 87(2)(b) were not allowed to enter the residence. Aside from two officers who were stationed at the front door of the residence, § 87(2)(b) did not see what officers were doing or where they were stationed inside the house. An officer attempted to convince § 87(2)(b) and § 87(2)(b) to grant officers consent to search the residence, and told them that they “didn’t make this easy on [themselves]” when both civilians refused to provide consent. Around 9:00 p.m., officers returned to the location with a search warrant, which they presented to § 87(2)(b).

The investigation obtained a brief video recording filmed by § 87(2)(b) during the incident (Board Review 36). The video depicts § 87(2)(b) and § 87(2)(b) speaking to two officers by the front door of the residence. In the footage, § 87(2)(b) accuses the officers of searching the residence; however, the officers state that they are “conducting an investigation,” and there are no indications that a search is being conducted.

§ 87(2)(b) s statement was generally consistent with those of § 87(2)(b) and § 87(2)(b) (Board Reviews 05 and 06).

Both Sgt. Badillo and Deputy Inspector Colon stated that, upon responding to the location in turn, they went upstairs and personally observed the firearms (Board Reviews 13 and 14). Sgt. Badillo described the firearms as being visible underneath a partially ajar mattress, while in his CCRB interview Deputy Inspector Colon described seeing only a single firearm, which was atop § 87(2)(b) s mattress. Upon arriving on scene and observing the firearms, Deputy Inspector Colon made the decision to arrest the civilians who were present at the residence and to obtain a search warrant for the entire residence. Deputy Inspector Colon did not recall the time at which he responded to § 87(2)(b) (Board Review 14).

Event documentation shows Sgt. Badillo arrived at § 87(2)(b) at 11:11 p.m., and that § 87(2)(b) and § 87(2)(b) s arrests were called over the radio at 12:19 p.m. (Board Review 08). The time at which Deputy Inspector Colon responded is not noted in any police documentation (Board Reviews 08, 14, 15, 16 and 17).

§ 87(2)(b) s arrest report lists his time of arrest as 12:18 p.m. (Board Review 18). The investigation did not determine whether § 87(2)(b) was determined to be under arrest prior to this point.

In People v. Mercado, 68 N.Y.2d 874, 875, 508 N.Y.S.2d 419, 421, 501 N.E.2d 27, 29 (1986), the New York Court of Appeals held that visually surveying an area where a person has a “cognizable expectation” of privacy, such as the home, constitutes a search (Board Review 09).

In making a lawful arrest, officers are permitted to search and seize contraband from the area where the arrested individual “might obtain weapons or evidentiary items,” often referred to as the “grabbable area.” [People v. Fitzpatrick, 32 N.Y.2d 499, 508, 346 N.Y.S.2d 793, 799, 300 N.E.2d 139, 143 (1973)] (Board Review 28).



Such a search must be “incident to an actual arrest, not just to probable cause that might have led to an arrest, but did not,” however, a search incident to lawful arrest may occur prior to a formal arrest, so long as the two events are “substantially contemporaneous” [People v. Reid, 2014 NY Slip Op 08759, 24 N.Y.3d 615, 2 N.Y.S.3d 409, 26 N.E.3d 237] (Board Review 30). A search incident to lawful arrest is also not “conditioned upon the arrested person's continued capacity to grab.” [People v. Fitzpatrick, 32 N.Y.2d 499, 508, 346 N.Y.S.2d 793, 799, 300 N.E.2d 139, 143 (1973)] (Board Review 28). Additionally, while a search incident to lawful arrest cannot justify a search of “any room other than that in which an arrest occurs – or, for that matter, for searching through all the desk drawers or other closed or concealed areas in that room itself” [Chimel v. California, 395 U.S. 752, 763, 89 S. Ct. 2034, 2040 (1969)] (Board Review 31), the courts have upheld more limited searches of the room wherein an arrest occurred. In People v. Crandall, 181 A.D.2d 687, 581 N.Y.S.2d 215 (App. Div. 1992), the Supreme Court of New York, Appellate Division, Second Department upheld the warrantless seizure incident to arrest of a firearm that was found within the defendant’s arm’s reach beneath a couch (Board Review 32).

In addition to conducting a search incident to lawful arrest, the United States Court of Appeals for the Second Circuit held in United States v. Miller, 430 F.3d 93, 95 (2d Cir. 2005) that officers may conduct a cursory inspection of those spaces where a person may be found when the officer possesses “articulable facts which, taken together with the rational inferences from those facts, would warrant a reasonably prudent officer in believing that the area to be swept harbors an individual posing a danger to those on the . . . scene” (Board Review 33).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations G and H** be closed as **exonerated**.

**Allegation (I) Abuse of Authority: Deputy Inspector Elliot Colon arrested** § 87(2)(b)

**Allegation (J) Abuse of Authority: Deputy Inspector Elliot Colon arrested** § 87(2)(b)

**Allegation (K) Abuse of Authority: Deputy Inspector Elliot Colon arrested** § 87(2)(b)

**Allegation (L) Abuse of Authority: Deputy Inspector Elliot Colon arrested** § 87(2)(b)

In her CCRB statement, § 87(2)(b) stated that after she was instructed to wait downstairs, she observed a supervisor wearing a white shirt entering the residence (Board Review 01). An officer then told § 87(2)(b) that she, § 87(2)(b) and § 87(2)(b) would need to be handcuffed until the supervisor left. The officer repeatedly assured § 87(2)(b) that she was not under arrest. The supervisor wearing a white shirt then returned downstairs and informed § 87(2)(b) that she, § 87(2)(b) and § 87(2)(b) were being taken in for questioning. § 87(2)(b) was never told that she was under arrest, and was told multiple times that she was not under arrest during the interaction.

§ 87(2)(b) and § 87(2)(b) were transported to the 67<sup>th</sup> Precinct stationhouse. Approximately four hours after her arrival at the stationhouse, § 87(2)(b) also entered the holding cell area. At approximately 11:50 p.m., § 87(2)(b) and the other civilians were questioned briefly regarding the incident, and were informed that a search warrant had recovered three B.B. guns in the residence and a magazine for an AK-47; no rifle was recovered. § 87(2)(b) and § 87(2)(b) were released from the stationhouse at midnight. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) and § 87(2)(b) provided statements consistent with that provided by § 87(2)(b) (Board Reviews 03, 04, 05 and 06). All of the civilians were consistent in stating that on the date of incident, only § 87(2)(b) and § 87(2)(b) resided at the residence.

In his CCRB interview, Deputy Inspector Colon stated that he made the decision to arrest the civilians who were present at § 87(2)(b) (Board Review 14). Deputy Inspector Colon stated that he was aware that these individuals were family members of § 87(2)(b) and that he for no specific reason assumed that they lived at § 87(2)(b). When asked why he ordered Sgt. Badillo to arrest the civilians, Deputy Inspector Colon repeatedly asserted during his interview that there “had to be” other contraband, aside from the two firearms discovered in § 87(2)(b)s bedroom, which was in plain view in the residence and which led him to issue the instruction to arrest the civilians to Sgt. Badillo. Deputy Inspector Colon could not recall what this additional contraband was on the date of interview. Deputy Inspector Colon stated that the civilians were arrested solely for criminal possession of a weapon for the weapons in plain view and for this additional contraband.

Neither PO Mercado-Akaydin nor Sergeant Badillo mentioned the existence of additional contraband that was in plain view at the time § 87(2)(b) and § 87(2)(b) were placed under arrest (Board Reviews 07 and 13). Such contraband is not mentioned in any police documentation, including the search warrant incident file report and post-execution critique (Board Review 24). During her CCRB interview, PO Mercado-Akaydin stated that in her understanding, the civilians were arrested for the purpose of conducting an investigation, and because of the firearms that had been discovered in § 87(2)(b)'s room (Board Review 07). Sgt. Badillo stated that he believed Deputy Inspector Colon made the decision to arrest the civilians solely because of the firearms discovered in § 87(2)(b)'s room (Board Review 13). When asked what they were considered to be under arrest for, Sgt. Badillo stated, "That was to be determined later on, you know, once they were brought back [to the stationhouse]."

The command log entries for § 87(2)(b) and § 87(2)(b)'s arrests is consistent with their claim that they did not live at § 87(2)(b) on the date of incident (Board Review 34).

The unspecified contraband in plain view mentioned by Deputy Inspector Colon during his CCRB interview is not mentioned in any other officer's testimony (Board Review 07, 13 and 14). It is also absent from any police documentation prepared regarding the incident, including documentation in which its existence would be extremely relevant, such as the search warrant post-execution critique prepared by Deputy Inspector Colon (Board Review 21). Deputy Inspector Colon could not recall anything about the purported contraband, and repeatedly used the phrase "there had to be [additional contraband]" in vouching for its existence. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

In People v. Ortiz, 103 A.D.2d 303, 479 N.Y.S.2d 548 (App. Div. 1984), the Supreme Court of New York, Appellate Division, Second Department wrote, "It is clear that ordinarily an individual's mere presence at the scene of a drug transaction or other criminal activity does not itself constitute probable cause (Board Review 19).

In People v. Montgomery, 293 A.D.2d 773, 742 N.Y.S.2d 126 (App. Div. 2002), two officers knocked on the front door of a second-floor apartment and identified themselves as police (Board Review 20). Officers stationed outside the apartment then observed two baggies of crack cocaine being thrown outside the window of the apartment. Upon entering the residence, the officers observed that two individuals were sitting by the window from which the cocaine had been thrown. A consensual search of the residence determined that these two individuals, as well as two sleeping children, were the sole occupants of the apartment. Officers arrested both individuals, at which time one of them admitted that the cocaine was his. The Supreme Court of New York,



- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[redacted]  
[redacted]  
[redacted]
  - [redacted]  
[redacted]  
[redacted]  
[redacted]  
[redacted]

### Civilian and Officer CCRB Histories

- [§ 87(2)(b)] and [§ 87(2)(b)] were all party to one additional CCRB complaint. [redacted]  
[redacted]  
[redacted]  
[redacted] None of the civilians, with the exception of [§ 87(2)(b)] have any additional CCRB complaints (Board Review 24).
  - [§ 87(2)(b)]  
[redacted]  
[redacted]
- PO Mercado-Akaydin has been a member of service for three years. This is the first complaint in which she has been listed as a subject.
- PO Rivera has been a member of service for seven years. This is the first complaint in which he has been listed as a subject.
- Sgt. Badillo has been a member of service for 20 years and has been the subject of eight allegations in five prior cases.
  - In CCRB 201600264, Sgt. Badillo was the subject of substantiated allegations regarding the entry and search of an apartment and of damage to the apartment's door. Sgt. Badillo has been the subject of no other substantiated allegations.
- Deputy Inspector Colon has been a member of service for 25 years. In that time, he has been the subject of 20 allegations in 13 other cases.
  - In CCRB 9604418, Deputy Inspector Colon was the subject of substantiated allegations regarding force, threat of force and discourtesy. Deputy Inspector Colon has been the subject of no other substantiated allegations.

Squad No.: \_\_\_\_\_

Investigator: \_\_\_\_\_

|           |                    |      |
|-----------|--------------------|------|
| Signature | Print Title & Name | Date |
|-----------|--------------------|------|

Squad Leader: \_\_\_\_\_  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date